

Bonded Aircraft Stores (Procedure) Regulations, 1965.

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Union of India - Act

Bonded Aircraft Stores (Procedure) Regulations, 1965.

UNION OF INDIA

India

Bonded Aircraft Stores (Procedure) Regulations, 1965.

Rule BONDED-AIRCRAFT-STORES-PROCEDURE-REGULATIONS-1965 of 1965

Published on 28 August 1965

Commenced on 28 August 1965

[This is the version of this document from 28 August 1965.]

[Note: The original publication document is not available and this content could not be verified.]

Bonded Aircraft Stores (Procedure) Regulations, 1965.

Published vide C.B.E. and C. Notification No. 115 -Cus, dated 28th August, 1965

C.B.E. and C. Notification No. 115 -Cus, dated 28th August, 1965. - In exercise of the powers conferred by Section 157 of the Customs Act, 1962 (

52 of 1962

), the Central Board of Excise and Customs hereby makes the following regulations, namely :

1.

Short title.

- These regulations may be called the Bonded Aircraft Stores (Procedure) Regulations, 1965.

2.

Definitions.

- In these regulations,

(a)

"Act" means the Customs Act, 1962 (52 of 1962

);

(b)

"form" means a form specified in the schedule to these regulations.

3.

Warehousing of goods for use as stores.

(1)

Whereas any imported goods for use in a foreign-going aircraft are to be entered for warehousing under Section 85 of the Act, an application in Form I shall be made to the [Assistant Commissioner of Customs]

[Substituted by the Finance Act, 1995, (22 of 1995), Section 50, for the words, 'Assistant Collector of Customs'.]

.

(2)

Every such application shall be deemed to be the bill of entry in relation to the goods specified in that application for the purpose of Section 46 of the Act.

(3)

On receipt of an application under sub-regulation (1), the [Assistant Commissioner of Customs]

[Substituted by the Finance Act, 1995, (22 of 1995), Section 50, for the words, 'Assistant Collector of Customs'.]

may permit the goods specified in that application to be warehoused without the goods being assessed to duty.

4.

Clearance of warehoused goods for supply as stores in a foreign-going aircraft.

(1)

Where goods permitted to be warehoused under sub-regulation (3) of Reg. 3 are to be cleared for use as stores in a foreign-going aircraft, an application shall be made to the [Assistant Commissioner of Customs]

[Substituted by the Finance Act, 1995, (22 of 1995), Section 50, for the words, 'Assistant Collector of Customs'.]

in Form II.

(2)

Every such application shall be deemed to be the Shipping bill in relation to the goods specified in that application for the purpose of Section 50 of the Act.

(3)

On receipt of an application under sub-regulation (1), the [Assistant Commissioner of Customs]

[Substituted by the Finance Act, 1995, (22 of 1995), Section 50, for the words, 'Assistant Collector of Customs'.]

may permit the clearance of the warehoused goods specified in that application for being taken on board the foreign - going aircraft as stores in accordance with the provisions of Section 69 if the Act as applied to stores by Sec.88 of the said Act.

Form I

(See para. 4 under Section 157)

(In Triplicate)

Schedule

Application for import and for warehousing of stores for aircraft

Name of Airlines Company.....

To

[Assistant Commissioner]

[Ibid for the words, 'Assistant Collector'.]

of Aircraft Stores (Warehouse),

Airport

Please allow us to deposit in the warehouse the packages containing stores for the air-craft intended for re-export on aeroplane proceeding on foreign flight.

The sheet of cargo manifest, consignment notes, invoices and specifications pertaining to the stores are attached

herewith and the particulars of the packages and stores are shown in the Schedule below :

Name of aircraft

Import Manifest Line No.

General No. and date

No. of Packages

Package and consignment Note No.

Detailed description of the goods distinguishing
size, type brand

Weight

Quantity

Assable value in foreign currency and exchange
rate and market tariff value whenever required.

Signature of Authorized

Representative of Airlines Company.

2. Application registered under No.....and date.....allowed.

[Assistant Commissioner of Customs]

[Substituted by the finance Act 1995 (22 of 1995) Section 59, for the words 'Assistant Collector of Customs'.]

(Warehouse Officer

3. Packages received in Warehouse No..... Examined
on.....

Contents :

Correct

Short

Damaged.

Entered in Ledger on page Nos.

Officer of Customs, In-charge of the warehouse

Inspector-in-charge.

4. We accept the result of the examinations/and agree to pay duty on the short/damaged contents as follows :

Quantity.

Description of the goods and Indian Customs

Tariff Classifications.

C.I.F.

Value

Assessable value in rupees.

Form II

(See para. 4 under Section 157)

(In Triplicate)

Application for re-export of stores imported and for warehoused for the aircraft

Name of Airlines Company.....

To

The [Assistant Commissioner of Customs]

[Substituted by the Finance Act, 1995, (22 of 1995), Section 50, for the words, 'Assistant Collector of Customs'.]

Airport

Please allow us to remove the following stores from the warehouse for being fitted/placed on board the aeroplane(s)
proceeding on foreign flight(s) as per Schedule shown below :

Detailed description of the goods distinguishing
size, type brand.

Quantity

Name of aircraft

Flight No.

Time and date of departure

Name of first foreign airport proceeding to

Signature of Authorised

Representative of Airlines Company

2. Application registered under No.....dated.....

[Assistant Commissioner of Customs]

[Substituted by the Finance Act, 1995, (22 of 1995), for the Words, 'Assistant Collector of Customs'.]

.

3. Stores as detailed in the schedule removed from the warehouse, sorted and fitted/placed on board the aeroplane(s) under my supervision.

[Assistant Commissioner of Customs]

[Substituted by the Finance Act, 1995, (22 of 1995), for the Words, 'Assistant Collector of Customs'.]

.

4. Stores as detailed in the schedule fitted/placed on board the aeroplanes.

5.

Entered in Ledger on page Nos.....

[Assistant Commissioner of Customs]

[Substituted by the Finance Act, 1995, (22 of 1995), for the Words, 'Assistant Collector of Customs'.]

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